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LAND RIGHTS IN THE REIGN OF AKBAR

The Evidence of the Sale-deeds of Vrindaban and Aritha

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0.1 In our paper, "Akbar and the Temples of Mathura and its Environs", presented at the 48th (Goa) session of this Congress we drew the attention of our colleagues to the important documents which have become available in recent years as a result of the establishment of the Vrindaban Research Institute (VRI) and the project of the International Association of VRI for photographing all documents in the temple archives and elsewhere. We had described how the project, with which one of us (Tarapada Mukherjee) was closely associated, brought together (in photographs) a very large number of Persian and Hindi documents, beginning with the sixteenth century¹. The recent acquisitions by the National Archives, and explorations by others, including those interested mainly in Vaishnav history, have added to their number. A respectable collection from the Gopinath temple (Jaipur), for example, has now become accessible (through xeroxed copies of the photographs) to us.

0.2 The paper we presented in 1987 and 1988 at this Congress were concerned chiefly with the relations between the Mughal administration and the temples of Vrindaban, bringing our narrative to the end of Shahjahan's reign. (1658). But this left out a very large segment of our documents, those which primarily concerned the property-acquisitions of the Chaitanya divines and of the temples and their servants. These are of considerable historical importance, since they enable us to judge, from details of actual transactions, what the nature of right to land was, and where, if at all the village community stood in respect of land transfers. As an initial measure, we have taken twenty-seven documents, all belonging to the period before the death of Akbar (1605). These are mainly in Persian; but eight of them are in Braj. We are greatly indebted to Professor J C Wright of the University of London, for letting us use his decipherments and translations of the Braj sale-deeds along with his notes on them. He is, of course, not responsible for any slip we may

make in interpreting these documents.²

0.3 In our Calendar³ we have arranged the documents in five sets, according to localities. The first set, consisting of eleven documents, related to Aritha, a village now known as Radhakund, a name already found in our documents. This village is at some distance from Vrindaban and Mathura, and was then in a different *pargana* (sahar) (see accompanying Map). It, therefore, may be thought to represent the rural conditions in a less alloyed form than Vrindaban, which was becoming a pilgrim centre of some importance. All the other four sets of documents relate to Vrindaban and its immediate environs; treating them in four different series will help us to better understand the successive transactions that the document describe.

I

1.1 Taking the Aritha set first, the reader may be well advised to begin with Doc.No.11, since it sheds important light on the nature of all the earlier documents. Here in a deed dated 2nd June 1588, *Goswami*. Raghunathdas declares that he possessed six plots of land in that village, holding them by different acts of purchase at the total price of Rs.238/- but had decided to gift them all to Jiv *Goswami*. For this purpose he now obtained fresh deeds drawn in favour of Jiv *Goswami* from the *muqaddams* (headman) who had originally sold the land to Gorakhathdas himself. He then proceeds to list six plots specifying their limits, dates of sale, and prices, the earliest transactions occurring in 1546. If we now turn to Doc.10, dated 29 November 1579, we see that this is a declaration that Kamana and others, seven "inhabitants" of the village, had sold six plots of land for Rs.238/- to Jiv Gusain, represented by Gopaldas Pujari. The six plots correspond to the six mentioned in Doc.11, as may be verified from the limits defined for each. One would think that this was the fictitious deed which Ragunathdas had got prepared in favour of Jiv *Goswami* to make his entitlement safer.

1.2 But there are other deeds as well in favour of Jiv *Goswami*, relating to plots specified in Docs.10 and 11. These are Docs.3,5,6,7 and 9, being respectively deeds of sale of plots,2,6,4,5,and 3., listed in Doc.11, with the same dates as specified in that document. They must, therefore, be necessarily fictitious. The sellers in all of them, except for the seemingly transcriptional omission of one name in Doc.8, bear the names of the very same "inhabitants" who sell the whole set of the same plots in 1579, although the deeds purport to bear dates from 1546 to 1577. Not only are the personal names identical, the arrangement of names of the sellers along with parents name is exactly the same. The same *qazi* Badruddin Hussain constantly puts his seal in the documents (Dos.3,5,6,7,7,9,10,11). There remains little doubt

then, that these documents too are fictitious, to the extent that they too were prepared much later than their purported date. The actual preparation took place either with Doc.10 only, in 1579, or, with both Docs.10 and 11, in 1588.

1.3 These conclusions also make any pre-1588 date dubious in respect of Docs. 1,2,4, and 8. Of these Docs.1,2, and 4 purport to be deeds of sales to Raghunathdas, and Doc.8, of sale to Jiv Goswami "through" Raghunathdas. The plots mentioned do not exactly correspond with plots in Doc.11, so far as dates and prices are concerned, but the sellers are the same as in Doc.10, identical again in names, parentage and order of mention. This is so even when Docs.1 and 2 are dated 1538 and 1545. There is therefore all the reason to believe that these two deeds were "created" much later. In the case of Doc.1, in any case, the reference to "rupaiya" proclaims it to be wrongly dated, since 1538 Sher Shah had not declared himself king, and the rupee was not yet minted by him. We must, therefore, assume that for some reason Raghunathdas was anxious to establish his claims (and those of Jiv Goswami) on the land and thus created a fiction of sales which had not actually occurred in the manner represented.

1.4 We may thus take it for certain that irrespective of their dates, all the documents in the Aritha set were probably prepared very close to each other in point of time. The only question to be left open is whether this was done in 1579 or at the time Doc.11 was prepared, that is, in 1588. While this element of fictitiousness must be borne in mind when we scrutinise the evidence of these documents, it does not by any means reduce their significance for *agrarian* conditions. Obviously, the seven sellers were actual individuals. In the Persian documents, from Nos.3 and 10, they are modestly described as "inhabitants" (*mutawattanan*) of village Aritha. But in Doc.11 they are termed *muqaddams*. In Doc.2, which is in Braj, they are called *panch mukadaman*, and if Doc.1 were not damaged here, it might also have so described them. They are also called *panch* elsewhere in Docs.1 and 2 and in Docs.4. Since they are seven, *panch* cannot mean literally five. The sense seems to be of their being *mukadams* (= *muqaddams*) which is assumed to be identical with *panch* in the meaning of village oligarch.

1.5 The parentage given to each of the seven sellers who shows that none of them were brothers. In other words, there is no reason to believe that they were disposing of joint-family property. Though they claim in Doc.10 that they were the "proprietors" of the land sold by them, in all the other documents they make no such claim, but say simply that they had sold 'the land of the village' (*zamin-i mauza*). It must be remembered that Doc.10 is a formal deposition they explicitly made before the *Qazi*, and so has to carry the statement that the land was in their exclusive property. It would tax one's

credulity too much to suppose that in each of the six plots, they had equal shares of property as individual owners. The real state of affairs seems to be that though not formally recognised by the Mughal administration as headmen and so compelled to style themselves as mere "inhabitants" in all the Persian deeds of sale, the sellers were in actual fact "headmen" of the village body, as we have seen. As "*panch*" headmen" they disposed of village land, and so were called upon to sell, or recognise the sale of each village land as Ragunathdas had acquired by mere occupation or by earlier purchase, to build Radhakund and Kishankund ponds.

1.6 Whether Rupees 238 in total in fact changed hands or constituted an imaginary price cannot be established, given the way and the purpose for which the documents were prepared. The seven "sellers" declare repeatedly that they had actually received the sums in question. What they did with the money--or whatever they received--- is not recorded. We would not know, unless further records appear, whether the price was just distributed among the seven "sellers" or went, in part at least, into the village financial pool, out of which the land-revenue was paid and village expense met.⁴

II

2.1 The second set of documents (nos.12-15) is the first of the four sets concerned with Vrindaban and its immediate neighbourhood. This particular set belongs to village (and hamlet) of Vrindaban proper.

2.2 Here too while the buyer again is Jiv Goswami, the sellers are numerous, though not identical in the different documents. The only exception is formed by the pair, Docs.Nos.12 and 13, where the sellers are not only identical, but placed in the same order, though Doc.12 is dated 1558 and is in Braj and Doc.13 is dated 1569 and is in Persian. But from the limits of the land specified and the identical price (Rs.60) one can see that the land transferred was the same. (The only particular the Persian deed adds is the area, 10 *bighas*, 11 *Biswas*). We must then assume that the Persian deed was drawn up to formalise the transaction for legal purposes (obtaining the *qazi's* seal of certification thereon),⁵ or that the Braj document bears an earlier, fictitious date, though the actual transaction occurred in 1569. Of the sellers in Docs.12 and 13, two, possibly three (if Manga in Docs.No.14 is the same as Gawanu) recur in Doc.14, of 1577. Since Doc.No.15 was written twenty-four years later (1601), it is not surprising that except for two common names (one Bhana and the other that of a son of one of the sellers in Doc.13), the other five names (one is lost through damage) are new. Despite change of persons, the group of sellers seems to be a continuing body and to consist of oligarchs representing the village

2.3 Doc.12, does not give the sellers any designation, but says that besides the cash price of Rs.60, garments worth Rs.10 were given for the *panch*. At the end, the *panch* of the *nagara* (*nagla, hamlet*) deposes as to the correctness of the facts in the document. Since the same sellers in the same transaction are designated *muqaddams* in Doc.13, we have a fair case for arguing that the sellers were not owners of the land in question, but were disposing of village land, in the same manner as the Aritha headmen.

The sellers are still called *muqaddams* in 1577 (Doc.14). But a change in their designation takes place in Doc.15 of 1601. The portion of the text is damaged so that it is not absolutely clear that it has used the word *zamindaran* (*zamindars*), but the *qazi* while affixing his seal, clearly uses the word *zamindars* for the sellers, "Sital, &c.". Otherwise here too, as in all the other documents of this set, the sellers do not expressly claim that the land they were selling had been their own personal property. Probably they still remained headmen, but as the use of the term *zamindar* was now spreading,⁶ it came to be employed almost as a matter of course for them as sellers of land.

2.4 Document 15 has another point of interest. Two of the eight headmen are Muslims (Junaid, Najm) to judge by their names (and if our decipherment is correct). This suggests that the village community was not necessarily broken up if there was more than one caste or religious sect in it.

2.5 One cannot also pass by 'Ali Khan', the Muslim *muqaddam* of village Rasi (?), in Doc.13, who appears as the *thakur* of village Sei in Doc.12; with the further appellation of *Chaudhari*. Obviously, he was more than a headman, not to be put in the same class as the numerous set of sellers we have so far been dealing with. He acted alone, having first obtained land in Vrindaban and then passed it on to Jiv Goswami. The term *thakur*, therefore, expresses his position better; and in the official terminology that would soon come into use he would be properly entitled to be called a *zamindar*. The avoidance of the word *chaudhuri* for him in the Persian deed suggests that 'Ali Khan was *Chaudhuri* by status; he was not an official of that designation.

III

3.1 Docs. 16-20, all belonging to just two years, 1593 and 1594, relate to hamlet (*nagla*) Nagu of village Dosaich (now Dosait, part of the town of Vrindaban). In Docs.16,17 and 20 Goswami Haridas is the buyer; in Docs.18 the purchase is made on behalf of Raja Man Singh, the ruler of Amber by an agent of his. These three documents mention the reigning Emperor (Akbar), as well as the *karori* (or Imperial Revenue-Collector) of the *sarkar* and, in two cases, his subordinate, the *shiqqdar* of *pargana* Mathura. The pair of officials is

mentioned in yet another document (No.25) of 1598 in which Haridas once again appears as the purchaser. In Docs.18 and 23 the *karori* Mathuradas alone is referred to. In Docs.17 and 18 the *sarkar* of Bayana is said to have been in the charge of the *karori* and in Doc.20 it is the *taraf*, or tract of Mathura. There was no *sarkar* of Bayana now, but there had been once, and Mathura was still within the *dastur*-circle of Bayana.⁷ The references to the *Karori* also show that during the year 1593-98, Mathura and Vrindaban were in the *Khalisa* (Imperial management) and not in the *jagir* of any noble. The *karori*, we may remember, was an official of *khalisa*, and *jagirdar's* revenue-collector could only be an *amil*. Besides these pieces of information, which are very welcome for us, the references to the *Karori* and *shiqqdar* are only idiosyncrasies of Haridas or his favourite draftsman, and cannot be held to mean that these two worthies -- any more than Emperor Akbar -- were either present at, or in any manner verified or guaranteed, the sale. The documents too make no such statement, the mention of officials being merely to reinforce the date and not to invoke their authority. Doc., 19 on the contrary was at least made before the *hakim*, the main-in-authority over the area, that is, the local official appointed by either a *jagirdar*, or if in *Khalisa*, the *karori*. One would have thought this was because Raja Man Singh was a party, if the same kind of statement had not been made in three other documents of sale where a plebian is the purchaser.

3.2 It would seem that the five documents of this set are divisible into two classes. Docs.16,17 and 18 record transactions, where individual persons could be selling their rights. In Doc.16, we have land, which is obviously on the way to becoming, if it has not already become, township land. It belongs to a *patti* (*patti*) or portion of the hamlet (*nagara*) of the Govind Dev temple. The sellers number four, but they are all brothers; and could have been joint-holders of the land. In Docs.17 and 18, there are two sellers each, and then again could be disposing of their own holding. The boundaries of the land given in Doc.17 reinforce this impression, since on all sides are shown fields of individuals who are named, and among whom we find one of the sellers, Nagu, himself.¹

3.3 In Docs. 19 and 20, the picture is markedly different. In there are as many as thirteen sellers, described in Doc.20 first as "Braj inhabitants of Shri Vrindavan", and then as "all the *panch*, (acting jointly)" (*sarpanchan milikari*). "All the *panch*" are also made to declare that the sale had actually been affected. The land sold is called *vithal-wari*, presumably meaning land which could only produce stunted crop (*baithal*),² and thus otherwise waste. This would be the kind of land, which would be no man's land, and thus where the community would have the sole voice in disposal.

Of the thirteen sellers, three are Muslims; Nijam (Nizam), Hamau (Humayun) and Naso. The last would not have been recognised as a Muslim, but for the spelling of his name in Doc.19, with an Arabic *swad* (s) used, and not in ordinarys which implies that the writer felt the villagers name was a corruption of the Arabic Nasir, or Nasir. This again underlines the fact that the *panch* of the village could be heterogeneous in terms of community, and so presumably, of caste as well.

3.4 Unlike Docs. 16, 17 and 20, which are all in Braj with much influence of Persianised Hindi, Doc. 19 is in Persian, and the buyer is Raja Man Singh, yet the sellers are exactly those named in Doc. 20, and listed in exactly the same order. There is no element of fictitiousness here, since the documents are only a little over six months apart: all the thirteen "sellers" could have been alive on both occasions. In Doc.20 they appear as 'the *panch* '; and it follows that in Doc.19 too they are in the same capacity. This may further explain why the order of names maintained is the same : this was the customary way of placing each individual in the hierarchy of the *panch* . The sellers work as the *panch* perhaps explains the presence of the curious word *hissa-i rasad* , share of provisions, which they distributed among themselves. Was this the remuneration they received for acting on behalf of the village?.

3.5 Doc.19 is interesting for other reasons too. It suggests how "community" and individual rights could arise in the same land. The thirteen sellers claim that they had lent Rs.150 to Pathal *Bairagi* , deceased; with part of this money he had put up a structure (*amla*) on land belonging to the sellers, which was rather small (4 *Biswas*). They were now selling this "waste" land, with the consent of Narain, the *Bairagi's* disciple, to Raja Man Singh for the sum of Rs.20. How the thirteen together could have lent the *Bairagi* a large sum like Rs.150/- is not easy to understand, unless those were payments made to the mendicant out of village funds, or raised by general contribution among villagers. The *Bairagi* was allowed to set up a structure on the land, and thus occupy it without any act of purchase. This nevertheless resulted in the creation of an individual right in the land, and the sellers are careful to say that the *Bairagi's* successor had consented to the sale. The document, therefore, suggests that the village community, through its accepted representatives, could not dispose of "waste" or unoccupied land; if the land was already occupied, the agreement of the occupant would be necessary.

IV

4.1 Docs. 21-25 record transactions in another portion of village Dosaich, the *patti* or *pati* of Gopa, the deeds being made within the years 1595-98. In four cases, the purchaser is Bhavanand, *adhikari* of the Gopinath Temple

(the buyer also in Doc.18) and in the fourth, *Goswami* Haridas, whom we have met already. The sellers are in all case single individuals, except in Doc.21, where we have a pair. The area of land is indicated in all transactions. The price of "cultivated land" (Doc.20) is exceptionally high, amounting to over Rs.14 per *bigha*. (we take it that the *tankas* in the amount 22 1/2 *tankas* mentioned in addition to price in rupees, are really *dams* or half-*tankas*, and represent as many fractions of the rupee) (40 *dams* = 1 Rupee). On the other hand, the price is only Rs.4 for a *bigha* of waste land in Doc.22. How land prices could vary is illustrated by Doc.25, where one plot carries a rate of Rs.4 per *bigha*, but another only Rs.2. All the transactions are among individuals, and there is no evidence of any appeal to "the *panch*" for its recognition or consent, even in Doc.23, which is in Braj. But Doc.23 does give us some additional insight into what "panch" meant. Mathuradas (*Karori*), described as *hakim* in the Persian version appears in the Braj version as "*panch* of the *sarkar* of Bayana". The word clearly means the principal man here.

V

5.1 In our last set, comprising two documents (Docs.26 and 27) the sellers make their position unambiguous by designating themselves as "the *panchayat* of the village (*deh*)" of the *Gopinath Temple*, the *deh* being presumably a hamlet close to that temple. The names of only four sellers are given (identical and with the same placing in both documents), but the addition of "etc". (*waghaira*) indicates that the number was much larger, and only four could be mentioned.

5.2 The term *panchayat* occurs very rarely in Persian documents. In a document of 1730 from district Gurdaspur (Panjab), the phrase "the entire *panchayat* of the market (*bazar*) of the township" obviously means, from the context, the entire body of shopkeepers, who had agreed to pay a certain rate to a local divine.⁸ In our present documents too, we must assume that the *panchayat* of the village meant the body of rural folk who had a say in the allotment or alienation of village land, that would affect them all.

5.3 Doc.26 reminds us of Doc.19, in that the *panchayat* is here selling land, which had already been occupied since it contained the house of one Kishan Gangar Baishnav, apparently not a member of the village body. No reference to any consent from the Baishnav is made, which is in contrast to what was carefully done in the transaction described in Doc.19.

5.4 In Doc.27 the word representing to what was sold is too unluckily not clear; but it refers to the necessity of the sale because one Khesu had already sold a house (*haveli*) in the vicinity to Gopinath Temple. The connexion is

not immediately apparent, but the need for acquiring or erecting buildings seems to be the particular purpose behind the two purchases. We are now moving into an urban environment. This is brought home to us especially by the witnesses who attest Doc.26. One is the *muqaddam* , Raghu (headman) not mentioned among the sellers and so possibly the headman of the main village of Vrindaban. But among other witnesses there are three *baqqals* (*banyas*) , and one (Dayal) is a *sarraf* (banker). The Vrindaban temples and pilgrims were obviously drawing business to Vrindaban.

VI

6.1 There are many other points in these documents, besides land- rights, which deserve notice. There is, for example, an interesting reference to the Persian wheel (*renta, rehnta*) in Docs.12 and 13. From the details of limits of plots of land given in these documents, one feels strongly tempted to attempt a map of Vrindaban and its environs, c.1600. Professor Wright in his work on Braj documents would doubtless comment extensively on the linguistic peculiarities of the Braj segment of our material.

6.2 We ourselves have should like to close by simply drawing attention to the constant use of the rupee as the basic coin in these documents.⁹ Even if we disregard the early dates affixed to the Aritha documents, as well as the date of Doc.12, for reasons already spelt out, it is worth noting that Doc.13 of May 1569, still quotes the price in rupees, and so too the Aritha documents, Docs.10 and 11, of 1579 and 1588. The *tankas* , when mentioned (docs.20 and 21 of 1594 nos 1595), are obviously for fractional use only. It would seem, then, that Mathura, being on the main route between Agra and Delhi, and close to the capital, Agra, tended to take to the new silver coinage much earlier than localities placed at a distance from the principal mints.

6.3 We may also observe, in passing, that not much should be made of the use of figure 8 for 1/2 rupee in Doc.24, where it specifies half of the sum of the price paid for purposes of confirmation of that amount. Ordinarily, it would mean that *annas* , the silver fractional pieces 16 to a rupee, were already in use. But the document is obviously a copy and when the copy was made, the scribe is likely to have written the figure for half the rupee in the same manner as he would have in a document of his own time., when *annas* were in every-day use.

CALENDAR OF DOCUMENTS

Abbreviations used :
G.D. Govind Dev

M.M. Madan Mohan
R.D. Radha Damodar.

1.ARITHA

1. R.D.Original (?),Braj, much damaged.

Sale deed, Vaisakh Sudi 3,V.S.1597/A.D. 1538, "written by the *panch* of the(entire) village of Aritha". Kamana s/o Kanhar, Salu s/o Dusa, Adhara s/o Muga)sa, Majha s/o Gula Gahraja s/o Asuya, Gobinda s/o Chuha(ra),Baharana s/o Gangu, sell land to Gusai Raghunathdas for "rupaiya"80 (?). Written by Baisandas (dhuti). Witnesses:Horala Pande, ..Pande,Ghangu Gujar Thalu (Bagari).

2. R.D.Copy, Braj.

Sale-deed, 3rd day of waxing moon Baisakh VS1602/14 April 1545, "written by othe *panch* of the village of Aritha". The "*Panch mukadaman*" Kamana s/o Kanhar, Salu s/o Dasu, Adhara s/o Mugasa, Majha s/o Gale, Gohoja s/o Asuwa, Gobinda s/o Chukara, Bohariya s/o Gangu, sell land of village to S. and W.of Radhakund (S.edge of cultivated land, W.village, mound edge of market-garden (kyari) , scrub, to Gusai Raghunathdas for "rapiya 30, which all the *panch* together received". Written by Bisandas Dhuti, Witnesses : Horala Pande, Taribhangi Pande, Ghangu Gujar, Thalu Bagari.

3. M.M 14 17. copy verified by QAZI Zainul 'Abindin; seal year A.H. 1140/A.D. 1727-28. persian.

Sale-deed, 17 shaban 953/13 October 1546, bearing seal of Qazi Badrud-din. Ka[ma]nas/o Kanhar, Salua s/o Dusa, Adhara s/o majha s/o.gali, gohaja s/o ASUWA Gobinda s/o mog[sa], majha s/o GALI, Gohaja s/o Asuwa, Gobinda s/o chuhara, and Bahorna s/o Ganga 'inhabitants' of village Aritha i.e. Radhakund, *pargana* Sahar, sell 'land of the village' to s. and w. of the villlage for rupees 30 'good, of full weight' to Ji Gusain s/o Ballabh Gusain. Deed listed in Doc.10 Plot (2).

4. R.D.Copy by same copyist as of Doc.2 Braj.

Sale deed 13th day of waning moon, Jeth,V.S. 1605(?)/6 May 1548(?). The year can also be read V.S.1625 = A.D. 1567-68." Made by*panch* of the inhabitants of village Arita." Gobinda sell to Raghunathdas land S. of Krishnakund, beyond the upper part of the village to the edge of the market-garden, for "rupiya20". and 4 pieces of cloth (pichord), taken by the *panhc* (*panchan line*) . Witnesses : Tribhangi Pande, Dasu Pande, Bembu Pande,Gopaldas Kohiya, Dhanuwa Pande, and Rauwakhar

Hathu.

- 5 M.M.S.Copy verified by Qazi (seal,torn). Persian.

Sale deed, 9 Jumada II (year torn), bearing seal of Qazi Badruddin. Kamana s/o Kanhar, Salua s/o Dusa. Adhara s/o Mogsa, Majha s/o Gali, Gohaja s/o Asuwa, Gobinda s/o Chuhara, and Adhona s/o Ganga, "inhabitants" of vill. Aritha, i.e. Radhakund, *pargana* Sahar, sell "land of the saik Kund", all situated N. of bank of the pond (*ghat*) and large *nim* tree to the edge of the market-garden, for Rupees 64., "good, of full weight", to Jiv Gusain s/o Balhab Gusain.

Year possibly A.H.985; C.Doc. of 9 Jumada II of 985 cited in Doc.No.11 (plot (6)). The Christian date could then be 24 August 1577.

6. M.M.7.Copy, verified by Qazi, seal. Persian.

Sale-deed, 15 Jumada II 985/30 August, 1577, bearing seal of Qazi Badru'ddin. Kamana s/o Kanhar, Salua s/o Dusa, Adhara s/o Mogsa, Majha s/o Gali, Gohaja s/o Asuwa, Gobinda s/o Chuhra and Bahorna s/o Ganga. "inhabitants" of village Aritha, i.e. Radhakund, *pargana* Sahar, sell to Jiv Gushain s/o Balhab Gushain, land of village appertaining to Kishankund towards S. of Do-ghat and the *hins* tree, for Rupees 20, "good, of full weight".

Deed listed in Doc.11 (Plot (4)).

- 6A M.M.11,18, Copy verified by qazi zauby-1 'Abidin (seal) : year 1145/1732-33.

The text is the same as of Doc.6, except that the year is written as 995 though the day of the month and the month are the same. 15 Jumada II 995 would correspond to 23 May 1587.

- 7 M.M.8 Copy verified by qazi qutbuddin Husain. Persian.

Sale-deed, 11 Rajab 985/24/september 1577, bearing seal of Qazi Badru'ddin. Kishna (Kamana) s/o Kanhara, Salua s/o Dusa, Adhara s/o Mogsa, Mahja s/o Gali, Gohaja s/o Asuwa, Gobinda s/o Chuhar and Bahorna s/o Ganga, "inhabitants" of village Aritha, i.e. Radhakund, *pargana* Sahar, sell land of the village, including "well of the tank" (*chah-i talab*), towards the N., for Rs. 14 "good and of full weight", to Ji Gusain s/o Ballabh Gusain. Some names of sellers obviously corrupted in this copy. Cf. Dec.11/(Plot (5))

8. M.M.10. Copy verified by Qazi Qutbuddin Husain, seal-year; 1128/1716. Persian.

Sale-deed, 12 Rajab 985/25 September 1577, bearing seal of Qazi Badru'ddin. Kamana s/o Kanhar, Salua s/o Dusa, Adhara s/o Mogsa, Majha s/o Gali, Gohaja s/o Asuwa, and Gobinda s/o Chuhara, "inhabitants" of village Aritha. i.e. Radhakund, *pargana* Sahar, sell land of the village towards the N. from the big *neem* tree to the passage over the tank (*talab*) for Rupees 44, through Raghunathdas, to Ji Gusain s/o Balhab Gosain.

9. M.M.6 Copy verified by Qazi (illegible seal). Persian.

Sale-deed, 9 Safar 986/17 April 1578, bearing seal of Qazi Badru'ddin. Kamana s/o Kanhar, Salua s/o Dusa, Adhra s/o Mogsa, Majha s/o Gali, Gohaja s/o Asuwa, Gobinda s/o Chuhara, and Bahorna s/o Ganga, "inhabitants" of village Aritha, i.e. Radhakund, *pargana* Sahar, sell land of the village appertaining to Kisankund, towards the N., large *Karail* tree and Gobindas well, towards the E., the *hins* tree, towards the S. the temple of Mahadev, for 80 Rupees of present- mintage (*Sikka-i hali*) to Ji Gusain s/o Balhab Gusain.

Deed listed in Doc.11 (Plot (3))

10. R.D. Original, Persian.

Declaration, 9 Shawwal 987/29 November 1579, bearing seal of Qazi Badruddin Husain. Kamana s/o Kanhar, Salua s/o Dusa, Adhara s/o jogna, majha s/o Gali, Gohanja s/o Asuwa, Gobinda s/o Chuhana and Bahorna of village Aritha, i.e. Radhakund *pargana* Sahar, testify at the (*qazi's*) court at the township of Sahar, testify at the (*Qazi's*) court at the township of Sahar that waste-land in the neighbourhood of Radhakund comprising the following six plots has been in their "possession and propriety occupation".

Plot 1. Bounded in N. and E by plot 2.

Plot 2. To the S., the limit of cultivation (*hadd-i medh-i zira'at*); to the W. the lane of the village mound.

Plot 3. To the N. the big karail tree and Gobindas's well; to the E. the Nul-lah and the *hins* tree; to the S., the temple of Mahadev.

Plot 4. To the S., *doghat* and the *hins* tree.

Plot 5. To the N., including well.

Plot 6. To the N., the ghat and the big *neem* tree, up to the limits of tillage and market-garden (*khetwari kiyari*).

These plots are now sold, with full rights, for rupees 238 of auspicious coinage (*sikka mubarak*), to Gopaldas *pujari*, s/o Radha Ballabh, agent (*wakil*) of Jiv Gosain s/o Ballabh Gosain.

The said agent (Gopaldas) confirmed the above on behalf of his principal.

Bishandas s/o Dhutt and Sa.....ka s/o Rasa attest to the genuineness of the right of the sellers. The sellers bound themselves for truth of the above.

11. G.D. 8. Original, Persian (Copy in M.M.1).

Declaration, 7 Rajab 996/2 June 1588, bearing seal of Qazi Badru'ddin Husain.

Gusain Raghunath declares he had purchased six plots of land in

the neighbourhood of the tank of the village of Aritha, *pargana* Sahar, for Rs.238/- and, in full possession of his sense, he made a gift (*hiba*) of them to Jiv Gusain, and in substitution of deeds of money-sale issued by the said (*siç!*) *muqaddams* in his own favour, he had fresh deeds in favour of the said Gusain written out, as per following details, whereafter neither he nor the *muqaddams* had any claims left upon the land :6 Plots (sold for) (Rs.)238.

Plot 1) :	To N. and E. Deed dated 21 Rajab 953/17 September 1546	Rs.30.00
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Plot (2) :	To S. Deed dated 17 Shaban 953/13 October 1546.	Rs.30.00
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Plot (3) :	To N. <i>Kare!</i> tree, tank and well of Gobinda, to E., nullah and <i>hins</i> tree, to S.temple of Mahadev. Deed dated 9 Safar 970/8 October 1562.	Rs.80.00
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Plot (4) :	To S. <i>Doghat</i> and <i>hins</i> tree, Deed dated 15 Jumada II 985/30 August 1577	Rs.20.00
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Plot (5) :

To N. including well. Deed dated 11 Rajab 985/24 September 1577	Rs.14.00
Plot (6) : To N., the <i>ghat</i> and the big <i>neem</i> tree, to the limit of the market-garden. Deed dated 9 Jumada II 985/ 24 August 1577.	Rs.64.00
Total :	Rs.238.00

VRINDABAN

Series A: Village Vrindaban

- 12 Two copies, r.d. ser. 5, acc 33 and ser. 21, acc. 37.braj.

Sale-deed, 12th day of waxing moon Chait V.S. 11615/31 march 1558. Nagu and GWANU, sons of Teja, Anant s/o Tilaha, and Aha;adu s/o Sakatu, have sold land around Rup Gusais retreat [*kunj*], together with the *kunj* to the *thakur* of Sei, Ali Khan Chaudhuri, and Ali khhan having obtained it has given it to jiv Gosai. The initial sellers the *panch* having received from the last Rs.60 in cash and Rs. 10 in garments the land together with the *kunj Gali* [narrow lane?] below the *renta* ['Persian wheel']; W., *Kunj gali* below the myrobalan tree, the banyan tree included up to the bank of the jamuna; N., the bank of the jamuna including the banyan the euphorbia and the silk-cotton tree, including the hillock *dungar* and *papadi* and *rewaj* shrubs. The *panch* of the *nagara* [hamlet] depose that the above is correct. Witnesses: of the main village *badeganu* ; Drawe, Chachui, Kisandas, and Bhim. Of the main hamlet (*bade nagara*), Gopa, Dhaku, Matha, Dharmdas. In the presence of the *panch*

- 13 .R.D. 13. Original. persian.

Sale-deed dated 5 zilhajj 977/21 May 1569 bearing seal of Qazi Badrud-din Hussain seal-year 978/1570-71, with endorsement that he had put the seal with consent of Nagu &c., *muqaddams* Nagu and ganu sons of Teeeja, Anant 's/o Tilaha, Ahaldar s/o Bhat[? SAHKAT], *muqaddams* of village Bindraban, *parqana* Mathura, have sold to ji Gusain through Ali khan, *muqaddams* of rasi [?Sei], for Rs.60. The specifications of the land are as follows;

Area ;10 *bighas*, 11*biswas* .

Length;63. Width; 67.

[Note the length and width are inverted. The linear units are not named but 20 of these must have made up one side of *bigha* .

Limits; S.below the *rehnta* (Persian-wheel), the *Kunj gali* (narrow lane), W., below the myrobalan tree, *Kunj gali* , including the banyan and the bank of the jaman (jamuna), the euphoria, including the *shisham* ; E.,*shisham* trees, ... the *dungar* (hillock), *paperi* ... shrub, up to *kunj gali* .

13a R.D. 10. Unverified copy of 13. Left side much torn.

14. R.D. 145. Copy, unverified by *gazi* . Persian.

Sale-deed dated 7 ziq'a'd 979/ 22 March 1572, bearing seal of Qazi Baruddin Husain same endorsement as in No.13. Manga, Nagu, Anant, Kotu, Ahlad and Bhana, *muqaddams* of village Bindraban , *pargana* Mathurs, sell one plot of land to Ji Gosain for Rs.8. Specifications:

Area: 3 *bighas* , 19 *biswas*

Length:79, Width : 15.

N., adjacent to *Kunj gali* ; S.*hins* tree and hillock(*dungar*); E,*pipal* tree; W., *Kunj gali* .

15. R.D. 136. Copy unverified by *gazi* . Persian.

Sale-deed, 19 Safar 1010/ 19 August 1601, bearing seal of Qazi Baruddin Husain , with the endorsement that he had put the seal "with consent of Sital , &c., *zamindars* ". Sital s/o Nasgu, Bhana, Parmanand, Biru, Syaman, Junaid, Najm and (one name torn), *Zamindars* (?word damaged) of village Bindraban, *pargana* Mathura, sell one plot of land for Rs.16 to Ji Gusain. Specifications:

4 *bighas* , 14 *biswas*

Length: 43 Width: 44

Limits: S. *Papre khunta* (?); N.,*Kunj gali* ;E.,*Kunj gali*; W.,*Pipal* tree has been included and so given (to buyer).

3. VRINDABAN

Series B: Nagla Nagu, Vill. Dosaich

16. G.D.(Jaipur). Original . Braj/Hindi (with many Persian words).

Sale-deed, 6th day of the waxing moon, Savan V.S.. 1650/- 23 July 1593, during the reign of Shri Padasah Akbar, Sah, and the term of the *karori* , Rai Mathuradas, and of the *sikdar* of *pargana* Mathura, Banarsidas, . Sikham and his brothers Puran and Ganga, and Gadhu, sell land of the *pati* Bhana of the *nagara* (hamlet) of Shri Govindji to Gusai Haridas *pandit* , *adhihari* , of Shri Govindji, at the price of Rs.93 *chaukhuta* (= *chahargosha*), of which Rs.10 has been received. All other claims to the land shall be false. Declaration by Sikham, Puram, and Ganga, sons of Chitu, and Gadhu s/o Baru. Witnesses : Bhana, Ahalad, Narawe and Ganesh.

17. G.D.(Jaipur). 3 copies. Braj./Hindi (with many Persian words).

Sale-deed, 11th day of waxing moon, Agahan V.S. 1650/- 24 November 1593, during the time of Padsah Shri Akbar Sah, Rai Mathuradas Sahgal, *karori* of *sarkar* Bayana, and Banarsidas, *sikdar* or *pargana* Mathura. Nagu's/o Guhaje and Shital, of *Nagara* Nagu, have sold to Gusai Haridas, *adhihari* of Shri Govindji 1 3/4 *bighas* of land for Rs.40 *chaukhuta* , its limits being ;E., *med* (raised border) of Nijam's (field); S.Nagus field and banyan; W., Toha's field; N.Dola's field. There is to be no dispute about Govindji's fields (*khet*). Declaration by Nagu and Sital (now so spelt); written by Naso. Witnesses: Raja Shri Kalyandas; *sikdar* jadaudas; Bhaia Ugrasen; Kashidas Kayat; Ahalad *gaurawe* (= *ganwar* , villager); Narawe *gaurawe*; *Gasana*, *gaurawe* ; Hamaua; Lakhe, *gaurawe* ;

- 18 Gopinath (Jaipur).Original. Persion followed by Braj.

Sale-deed, 29 Rabi I 1002/22 January 1594. Ganesa s/o Marera (?) and Sahib s/o Nanu Gorwa sell 1 1/2 *bighas* of agricultural land (*zamin-i zira'ati*) in *patti* Bhana, *nagla* Nagu (vill.Dosaich), *pargana* Mathura, to Swami Bhavnand for Rs.4, at Rs.2 3/4 per *bigha* . The Braj version gives the Samvat year as 1650 A.D. 1592-93 adds the village (*mauza*) name 'Dochhaichh', places *pargana* Mathura in *sarkar* Bayana and refers to Rai Shri Mathuradas as *karori* of that *sarkar* .

19. G.D.Original .Persian

Declaration dated 16 Azur 38 (ilahi year), i.e.29 Rabi' II 1002/22 January 1594. Invocation: Allahu Akbar Gahan, Hardas, Sital, Nizam, Himan, Naso, Jaimal, Ahlad, Narwe, Bhanan, Ganesh, Lahnu (Halau?), and Bucha, inhabitants of village Dosaich, *nagla* Nagu and Bhanan, dated before the *hakim* (*jagirdar/karori*) of *pargana* Mathura, that Pathal Biaragi, deceased, had in his lifetime borrowed from them Rs.150. Some of it he had spent for himself and the rest he had used for putting structure (*amla*

) on land of the deponents, which has these specifications; Length: 9; Width 8 Area: E & S., public road; W & N., waste land. Now, the deponents have sold the said structure with the agreement of Narain Brahman, disciple of the said Pathal, along with their land, for the purposes of the garden of the Raja of Rajas, Raja Man Singh, to Hardas, s/o Kaidar, for Rs.20 1/2 *chahar-gosha*, current of *Akbarshahi* mintage the whole of the structure along with the land being thus sold. The sellers have received the said sum in front of an assemblage of Muslims and Hindus, and distributed the share of provisions (*hissa-rasad*) among themselves. They together with the said Narain have got this written as confirmation of above. Witnesses: Three round seals, one of Abdullah. Three signatures in Nagari, one by the *Kanugo* (*ganugo*). Two signatures in Persian: Sikan-dar s/o Husain; Ahmad s/o Burhan.

20. G.D. (Jaipur), Original: Braj/Hindi (with many Persian words).

Sale-deed, 2nd day of waning moon, Kuwar, V.S.1651/22 August 1594, during the reign of *Padsah* Shri Akbar Sah, the term of Rai Mathuradas as *Karori* of the *taraph* (*taraf*) of Mathura. "The Braj inhabitants of Shri Vrindavan, Gawan, Haridas, Shitai, Nijam, Hamau, Naso, Jaimal, Ahalad, Narawe, Bhana, Ganesh, Hulahu and Bucha, "all the *paanch* jointly (*sav-panchan mili kari*)" sell a plot of *vithal-wari* land for Rs.20 1/2 and 4 *tankas* to Gusai Haridas for the purposes of Shri Govindji's garden.

Declaration by "all the *panch*", written by Naso, that this is correct. Deletions of some names of witnesses. Witnesses: Bhavanand Gusai; Vishnuvichitr; Madhav Rai Bangali, Jadu/Duragu, Bhagwandas. Also declaration by Kisandas, *wakil* (agent/representative).

4. VRINDABAN

series C. Nagla Gopa, Village Dosaich.21.

Gopinath (Jaipur). Copy verified by Muhammad Khizr, naib-qazi, seal-year: A.H.1114, R.Y.46/A.D. 1701. Persian and Braj.

Sale-deed dated 30 Shahrewar Ilahi 40, = 17 Zilhajj 1003/23 August 1595, bearing the seal of Qazi Abdullah. Hari and Chanda sell cultivated land 1 *bigha*, 3 *biswa* without buildings, (*kharij at imranat*) in village Dosaich, *patti nagla* Gopa, for Rs.16, and 22 1/2 *tanka*, before the *hakim*, to Bhawanand, *adhikari* of Sri Gopinath (temple). The sellers received the amount in presence of the following. (Names not given in Persian).

Hindi version follows, giving limits of the land sold and names of two witnesses: Chaube Bale; Chaudhari Kalyan; Ugrasen *Kanaugo*.

22. Gopinath (jaipur). Copy , verified by Muhammad Khizr, *naib gazi* , seal-year; A.H.1114,R.Y.46/A.D.1701. Persian and Braj.d

Sale-deed , same date in *ilahi* and *hijri* as Doc. No.21 (= 23 August 1595). Ragu s/o Chalis (?) and Bharon s/o Lalu sell one *bigha* of waster (*banjar*) land in village Dosaich, for Rs.4 *chahargosha* , before the *hakim* of the town (*gasba*) of Mathura, to Bhavanand *adhikari* , in the presence of the following (Names not given in Persian).

Hindi version follows, stating that the land belongs to "*pati Gopa ki nagara*" defining limits, and giving names of two witnesses: Chaudhari Kalyan and Ugrasen *Kanaugo* .

- 23 Gopinath (Jaipur),. Copy through not so designated). Persian & Braj versions.

Sale-deed, 3 Shariwar Ilahi Year 41-17 Zilhij 1003/23 August 1595. Gadu s/o Biru, s/o Bhima sells *bigha* , 14 *biswas* cultivated land, without buildings, in vill.Dosaich, for Rs.14 *chahargosha* of Akbarshahi mintage in presence of the *hakim* of the town of Mathura to Bhawanand, *adhikari* of Shri Gopinath (temple). Braj versions describes the *hakim* of Persian versions as "the *panch* of *sarkar* of Bayana Gusai Shri Mathuradas". Witnesses include Ugrasen *Kanugah* ;

- 24 Gopinath (Jaipur). Copy (through not so designated), carelessly made. Persian.

Sale-deed, 41 Ilahi, 3 Zilhajj1005/18 July 1597.

Sanoli s/o Sahjo, 50 years, sells a plot of 2 *bighas* 15 *biswas* 1 of land in *nagla* Gopa, village Dosaich, to Gosai Bhavanand, *adhikari* , Gopinath (temple), for Rs.18 *kalala*(?). *Limits of land* given but carelessly written.

25. G.D.(jaipur). Orogon :Braj.

Sale-deed, 7th day of waxing moon, Agahan, V.S.1655/25 November 1598, in *pargana* Mathura, village Dosaich, during the time of Imperial (ammir = amira) *Kirori* Rai Mathuradas, *sikdar* Banarsidas, Hari s/o Beta sells 1/2 *bighas* of land to same for Rs.4, the land being on left side of road to Mathura, E(land of ?) Jaisingh, S.boundary of Pitha's kitchen- garden, in (village) Rajpur. Total area sold; 2 1/2 *bighas* of Brindavan oland. Totl price :Rs.6. Witnesses: Wawala, Sital, Naval, and Tanu. Written by Kaith Mathuradas. Declaration by Hari, s/o Auhatti, KAchawaha 5jati(caste).

5.VRINDABAN

Series D: "Village" of Gopinath Temple.

26. Gopinath (jaipur). Copy (though not designated as such). Persian

Sale-deed, Safar 1008, V.S.1656/23 August - 20 September 1599. Invocation :*Allahu Akbar* . Jadu, Sanoli, Parsi, Barje, etc.*Panchayat* ., of village (*deh*) Shri Gopinath Jiu, gave land of house of Kishan Gangar (?) Baishnav to Kanhar Kaith for (Rs.) 25, (half of which,(rs)12.8 (as.)). Transaction firm, since Shri Gopinath is present.

Witnesses: Raghu, *muqaddam* ;

dilshah; Mehra, *baniya* ; Bhawal, *baniya*, *Bihari*, *banya* ; dayal, *sarraf* ; Mankath (/), Brahman; Ghatu, Brahman; and Kathji (?). Note : for *banya* the word used is *baggal* .

27. Gopinath (Jaipur). Copy ? Persian.

Sale-deed, no date, but prob.of same time as Doc.24 Jadu, Sanoli, Parsi, Barji, etc. (or and Nara), *panchayat* of village Gopinath Jiu, sell cottage (*kutia*, written *lutia*) to the east (of the temple) since Khesu has sold a house already to Shri Gopinath (temple) on the west - to Kanhardas Kayat (Kayaith), *sevak* of Gopinath (temple). Transaction firm, since Shri Gopinath is present. Price paid: Rs.40 (half :Rs.20).

Notes and References :

1. Our paper without the Appendix carrying translations of documents was published in the Proceedings of the 48th Session *PIHC* 1987 . pp 234-50
2. As Vice-President of the International Association of VRI Professor Wright was involved in organising the project of exploring and photographing the documents. He is now engaged in editing the deeds of sale (1538-1780) in Braj Bhasa.
3. Our Calendar does not profess to give literal translations except where words are put within quotation marks. However effort has been made to be as loyal to the originals as possible. Original spellings (e g. Bindraban for vrindaban) have been retained.
4. For this see Irfan Habib Agrarian System of Mughal India Bombay 1963 pp. 124-28
5. It may be noticed that the year on the qazi's seal is A.H. 978 whereas the document is dated 977. This suggests that the document was drawn up in the earliest year but the qazi's seal was obtained much later
6. Cf. *IESHR* R Vol IV no. 3. PP. 211-12.

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7. Cf. Our comments on this point in *PIHC* 1987 p. 245.
 8. Cf. Irfan Habib. *Agrarian System of Mughal India* pp. 275-6 283-84.
 9. Docs 21, 22 and 23 similarly say the transactions were made "before the Hakim".
 10. This document has many witnesses a number of them described as mere qaurawe = qanwar villager.
 11. See G.A. Grierson. *Bihar Peasant Life*. Delhi. 1975. p. 269.
 12. B.N. Goswami and J.S. Grewal. *The Mughals and the Jogis of Jakhbar*. Simla. 1967. pp. 157-8.
 13. Cf. Irfan Habib *IESHR*. Vol. IV no. 3. pp. 217-18 for the rather late use (rare before 1592-93) of the rupee in sale-transactions in the area around Bilgram (West U.P.).